

**BEFORE THE MAHARASHTRA
REAL ESTATE REGULATORY AUTHORITY, MUMBAI**

Virtual Hearing held through video conference as per
MahaRERA Circular No.: 27/2020

- | | | |
|---|------------------------------------|-----------------|
| GAUTAM THAKKAR | 1. COMPLAINT NO. CC006000000193702 | ...COMPLAINANT |
| | a/w | |
| MUKESH DESAI | 2. COMPLAINT NO. CC006000000193840 | ...COMPLAINANT |
| | a/w | |
| LENZON MENDES | 3. COMPLAINT NO. CC006000000198422 | |
| IMMELDA MENDES | | ...COMPLAINANTS |
| | VS | |
| JVPD PROPERTIES PRIVATE LIMITED | | ...RESPONDENTS |
| | a/w | |
| | 4. COMPLAINT NO. CC006000000199138 | |
| SERENITY WELFARE ASSOCIATION | | ...COMPLAINANTS |
| | VS | |
| JVPD PROPERTIES PRIVATE LIMITED,
XANDER FINANCE PRIVATE LIMITED,
SWATANTRA KUMAR | | ...RESPONDENTS |
| | a/w | |
| | 5. COMPLAINT NO. CC006000000251387 | |
| YAQOOB AHMED | | ...COMPLAINANTS |
| | VS | |
| JVPD PROPERTIES PRIVATE LIMITED | | ...RESPONDENTS |
| | 6. COMPLAINT NO. CC006000000292679 | |
| SAUREB BANNERJI
DEVJANI BANNERJI
SHIPRA BANERJEE | | ...COMPLAINANTS |
| | VS | |
| JVPD PROPERTIES PRIVATE LIMITED,
LAXMAN BHAGTANI,
DIIPESH LAXMAN BHAGTANI,
MUKESH LAXMAN BHAGTANI,
JAYCEE HOMES PRIVATE LIMITED | | ...RESPONDENTS |

MAHARERA PROJECT REGISTRATION NO. P51800011181

Order

January 09th, 2025

(Date of hearing – 27.11.2024 matter was reserved for order)

Coram: Manoj Saunik, Chairperson, MahaRERA

The complainant at sr. no. 1 is present in person

None present for the complainants at sr. nos. 2, 4 & 5

Advocate Shakila Mulla present for the complainant at sr. no. 3

Advocate Satish Dedhia present for the complainant at sr. no. 6

Advocate Alok Singh present for the respondents at sr. nos. 1 to 6

1. The complainants are home buyers and each of them is an allottee within the meaning of Section 2 (d) of the Real Estate (Regulation and Development) Act, 2016 ("Act") of Real Estate Regulatory Authority ("RERA") and the respondents are registered as promoter within the meaning of Section 2 (zk) of the project namely "SERENITY- BLDG 1" under section 5 of the Act bearing MAHARERA Project Registration No. P51800011181 ("Project").

2. On the MahaRERA Project registration webpage the proposed date of completion is mentioned as 30.07.2025 and the revised proposed date of completion is mentioned as 30.07.2026. The occupancy certificate is yet to be issued..
3. The complainants are seeking the following reliefs:

SR. NO.	COMPLAINT NOS.	RELIEFS SOUGHT
1.	CC006000000193702	"1) Cancellation of booking 2) Refund of the amount paid by us along with the interest at the rate fifteen percent from the date of receipt of the respective sums till date of repayment."
2.	CC006000000193840	
3.	CC006000000198422	"i. That the Respondent be directed to refund to the Complainants Rs. 18,77,007/- along with interest as per the RER Act 2016. ii. That the Respondent be directed to pay cost of Rs.10 lakhs towards legal expenses, stress, mental harassment and agony that the Complainants suffered at the hands of the Respondents iii. That the charge of aforesaid amount be created on the Respondent Property under project bearing C.T.S' No. 634/5 and 64D "5" ward of village Tirandaz, Taluka Kurla, Mumbai, till the complainants' claims are satisfied. iv. That, the Hon'ble Authority to protect the interest of the Complainants, provide any other relief provided under the Real Estate (Regulation and Development Act), 2016 as this Hon'ble Authority deems fit."
4.	CC006000000199138	"a. Order to respondent no.2 Xander finance, to register with MAHARERA as per MAHARERA G R no. 28/2021 and 24/2019 along with time bound program for completion of the project . b. Order to respondent no. 2 to give reasons for not having called even a single meeting for development of this project Or In case the respondent no.2 doesn't register as promoter in the said project, order of revocation of registration of promoters u/s 7 and order for completion of incomplete work by complainant Association of allottees u/s 8 with payment of costs for completion work to be paid by the promoter and/or to be funded by receivables from the allottees to promoters and sale of unsold flats in this project and balance if any be charged to other properties of the promoters . c. To order the promoters to issue receipts towards the above mentioned contribution by the allottees in the bank account opened for collection of balance sale consideration payable by the allottees. d. To authorize the allottees Association to sale the unsold flats in the wings being completed by the association of allottees and use the money towards the completion of project and transfer the balance to the promoters on execution of conveyance as per section of RERA2016. e. Compensation As per section 18 (3) for various violations with regards to RERA -2016, Rules, Regulations under the act And Agreements for sale. f. The Costs of the Complaint be granted to the Complainant from the Respondents. g. Any other relief as the Hon'ble Authority may deem just and proper be passed in the interest of justice."

5.	CC006000000251387	"a) that the Respondent be directed to refund the Complainant the entire amount paid to them by the Complainant for purchase of the said flats. b) that the Respondent be directed to pay the Complainant interest @ 15% p.a. from date of payment to its final repayment to the Complainant as per the clause 8 of the said Allotment Letters, under Section 18(3). c) cost of the suit may be given to the Complainant. d) The charge of the aforementioned amounts to be paid by the Respondent be treated as a claim on the Respondent's property under project bearing C.T.S. No. 63A/5 and 64 D"S" ward of village Tirandaz, Taluka Kurla, Mumbai till the Complainant's claim is satisfied. e) any such reliefs as the Hon'ble Authority may deem fit and proper."
6.	CC006000000292679	"a. That this Hon'ble Authority be pleased to direct and order the Respondents jointly and/or severally to refund the amount paid by Allottees along with interest @ 15% as per the terms of the Allotment Letters from the date of payment made by the Allottees to Respondents till the actual date of refund received by the Allottees, within time bound schedule. b. That this Hon'ble Authority be pleased to direct and order to that Allottees will have the first charge on the property admeasuring 8094 m2 and bearing Old Survey No. 34 and 37 (part) and New Survey No. CTS No.63A, 63/5 and 64D, of Village Tirandaz, Tal Kurla, MSD. till the Allottees get a refund along with interest as per Final Order u/s 18. c. That this Hon'ble Authority be pleased to direct and order Secretary, MahaRERA to initiate all necessary steps including by approaching various authorities to ensure recovery of the amounts from the Respondents or on sale of the property and to secure compliance of the obligations of the Respondents in accordance with law and to protect interest of the Allottees. d. That this Hon'ble Authority be pleased to direct and order Respondents to pay such penalty as may be decided by it as per provisions under RERA for non-compliances, contraventions and violations of provisions under RERA. e. Costs of this Complaint be provided for. f. For such other and further reliefs."

4. The complaints were heard on 27.11.2024 wherein the following roznamas were recorded:

SR. NO.	COMPLAINT NOS.	Sr. No. as per the cause list dated 27.11.2024	ROZNAMA
1.	CC006000000193702	33	"Parties heard at length. Parties are at liberty to submit written submissions before 04.12.2024, subsequent to which the matters will be reserved for orders."
2.	CC006000000193840	34	
3.	CC006000000198422	35	
4.	CC006000000199138	36	
5.	CC006000000251387	37	
6.	CC006000000292679	38	

5. The brief submissions of the complainants in captioned complaints are as follows:
- That the complainants at sr. nos. 1 & 3 have sought refund along with interest due to following:
 - Pandemic and financial crisis the complainant requested the respondent that he wants to cancel the bookings of the respective flats.
 - Respondent replied to that stating as per the cancellation policy the amount paid by the complainant will be forfeited as per the booking form or allotment letter.
 - Culminating to the complainant filing this complaint seeking that the respondent to return the amount paid by the complainant towards the respective flats.
 - That the complainant in the captioned complaint at sr. no. 4 is an Association of Allottees namely "SERENITY WELFARE ASSOCIATION" who seek that the "XANDER FINANCE PRIVATE LIMITED" who have taken possession of particular units as non-performing-assets in the Project in the capacity of secured creditor; to officially register itself as a promoter and fulfil all the duties under chapter-III of the Act like execution of conveyance deed with the association.
 - That the complainants at sr. no. 2, 4 & 5 not only have failed to appear during the hearing but also failed to submit any written submissions on record even after provision of time for submitting the same.
 - That the complainants at sr. no. 6 seek refund along with interest due to following:
 - The allotment letters are concluded contract and capable to result into the specific performance.
 - Disclosure of encumbrances during the project registration does not state that allottees at sr. no. 6 are investors.
 - That the allotment letters are eligible base document to create any claim against the flat as per precedents set by MahaRERA; thus, allotment letters are not contingent contracts.
6. The brief common submissions of the respondents in captioned complaints at sr. no.1 to 3, 5 & 6 are as follows:
- That the complaints are premature as, the date of the completion of the Project is 30.07.2025.
 - That the respondent merely issued provisional allotment letter to the complainant which cannot be equated on the footing of an agreement for sale. The same is a contingent contract and not a concluded contract.
 - That the complainant is not an allottee but an investor in the project.
 - The provisional allotment letter clearly makes the complainants aware of the risks involved including the possibility of the Project not taking off and getting cancelled and that the plans and specifications for the construction of the Project were pending for submission.
 - The respondents in the complaint at sr. no. 4 object to the claims made by the complainant that XANDER FINANCE PRIVATE LIMITED" is a secured creditor who can be appointed as new developer or promoter.

7. The brief facts in the complaints are as follows:

SR. NO.	COMPLAINT NO./ DATE OF FILING	SUIT PROPERTY (FLAT NO./WING)	DATE OF AFS ¹ / AL ²	POSSESION AS PER AFS	TOTAL CONSIDERATION (INR)	TOTAL AMOUNT PAID (INR)	RELIEFS SOUGHT
1.	CC006000000193702 11.08.2020	701/A & 702/A	15.06.2013 (AL) &	30.07.2025 {The AFS of Respondent at sr. no. 1 to 3	64,86,000/- & Not mentioned	19,24,650/- (excluding taxes) &	Refund

¹ AFS-Agreement for Sale.

² AL-Allotment Letter.

			10.05.2013 (AL)	<i>do not mention the date of</i>		19,45,800/- (excluding taxes)	
2.	CC0060000001938 40 27.08.2020	402/D & 3501/A.V. & 3502/A.V.	25.03.2013 (AL) & 15.09.2014 (AL) & 15.09.2014 (AL)	<i>possession in thus this Authority considers the proposed date of completion mentioned in the registration on RERA portal as the specified date.}</i>	75,00,000/- & 69,00,000/- & 67,80,400/-	32,57,850/- (excluding taxes) & 21,33,963/- (excluding taxes) & 20,96,974/- (excluding taxes)	
3.	CC0060000001984 22 24.09.2021	701/B	27.01.2014 (AL)		75,00,000/-	50,00,000/- (excluding taxes)	
4.	CC0060000001991 38 22.12.2021	This complaint is filed by the association of allottees against the promoter and secured creditor of the Project who seek that secured creditor; to officially register itself as a promoter and fulfil all the duties under chapter III of the Act like execution of conveyance deed.					
5.	CC0060000002513 87 08.06.2022	2304/B	14.10.2013 (AL)	<i>As per the AL:- within 42 months of Booking Date or the date of AL</i> 15.10.2015	52,87,500/-	51,24,116/- (excluding taxes)	Refund
6.	CC0060000002926 79 14.09.2022	1801/D & 1802/D	31.08.2013 (AL) & 31.08.2013 (AL)	<i>As per the AL:- within 42 months of Booking Date or the date of AL</i> 01.09.2015	1,22,00,000/- & 1,14,10,000/-	36,25,000/- (excluding taxes) & 28,35,000/- (excluding taxes)	

8. From the facts and submissions by the complainants; the issues that needs to be examined are:
- Whether the captioned complainants at sr. no. 1 to 3 are maintainable or not?*
 - Whether the complainants at sr. no. 4 are entitled to register a conveyance deed in favour of homebuyers under Section 17 of the said Act?*
 - Whether the captioned complainants at sr. no. 5 & 6 are entitled to a refund along with interest under Section 18?*
9. In order to answer the issue framed at paragraph No. 8. pertaining to reliefs claimed under section 18 of the Act for refund of amount paid against the total consideration along with interest at sr. nos. 1 to 3, 5 & 6. The Authority shall examine the relevant facts and arrive at its findings.
10. i) Complaints at Sr nos. 1 to 3.
- The allotment letters of respondents at sr. nos. 1 to 3 fail to mention the date of possession in the allotment letters that are provided by the complainants in respective complaints on MahaRERA portal.
 - The Authority considers the proposed date of completion that is 30.07.2025, as the relevant date which is provided by the promoter while registering the Project on MahaRERA portal. Thus, making the captioned complaints premature and not maintainable.

ii) Complaint Sr no. 4

- a. The complainant at sr. no. 4 is an association of allottees namely "SERENITY WELFARE ASSOCIATION" who seek that the "XANDER FINANCE PRIVATE LIMITED" who have taken possession of particular units as non-performing-assets in the Project in the capacity of secured creditor; to officially register itself as a promoter and fulfil all the duties under chapter-III of the Act like execution of conveyance deed with the association which will further enable the association to complete the Project.
- b. The relief sought by complainant at sr. no. 4 stands rejected as "XANDER FINANCE PRIVATE LIMITED" is a secured creditor of the Project and not the developer or promoter. This relief is not provided specifically in the Act.

iii) Complaint at Sr nos. 5 and 6

- a. The facts in complaints at sr. no. 5 & 6 are as under.

SR. NO	COMPLAIN T NO./ DATE OF FILING	DATE OF AL ³	DATE OF POSSESSION	TOTAL AMOUNT PAID (INR)	INTEREST TO BE PAID FROM
5.	CC006000000 251387 08.06.2022	14.10.2013 (AL)	<i>As per the AL: - within 42 months of Booking Date or the date of AL 14.10.2013 which makes the date of promised possession as 13.04.2017</i>	51,24,116/- (excluding taxes)	14.04.2017
6.	CC006000000 292679 14.09.2022	31.08.2013 (AL) & 31.08.2013 (AL)	<i>As per the AL: - within 42 months of Booking Date or the date of AL 31.08.2015 which makes the date of promised possession as 28.02.2017</i>	36,25,000/- (excluding taxes) & 28,35,000/- (excluding taxes)	01.03.2017

- b. As the dates of completion are found in the allotment letters so the date from which interest is payable is shown in the last column of the above table.

FINAL ORDER

11. Therefore, after considering the observations and provisions of the Act, the materials placed on record, the facts of the case and submissions made by the parties, the Authority passes the following order:

³ AL-Allotment Letter.

- A. The complaints at sr. nos. 1 to 3 are not maintainable for the reason of being premature as more specifically mentioned herein paragraph no.10 i) b.
- B. The complaint at sr. no. 4 is disallowed for the reason as more specifically mentioned herein paragraph no.10 ii) b.
- C. The complaints at sr. nos. 5 & 6 are allowed and the complainants are entitled to claim reliefs under section 18 of the said Act for refund along with interest as indicated in paragraph 10 iii) a & b.
- D. The respondent promoter is hereby directed to refund the entire amounts paid by the complainants at sr. nos. 5 & 6 along with interest accrued thereon from the date mentioned in paragraph no. 10 iii), under the heading '*interest to be paid from*' at the rate as prescribed under Rule 18 of the Maharashtra Real Estate (Regulation and Development) (Registration of Real Estate Projects, Registration of Real Estate Agents, Rate of Interest and Disclosures on Website) Rules 2017, till the realization of the full amount of refund along with accrued interests within 60 days from the date of this order.
- E. As the date of possession and delay caused falls prior to the Covid-19 pandemic, the respondent at sr. nos. 5 & 6 is not entitled to claim the benefit of "moratorium period" as mentioned in the Notifications / Orders Nos. 13, 14 and 21 dated 02.04.2020, 18.05.2020 and 06.08.2021 respectively issued by the MahaRERA.
- F. Further, the respondents are also duty bound to cancel the allotment letters/booking forms of all the complaints upon the refund of the amounts with interest.
- G. All other reliefs claimed by the Complainants in all the complaints stands rejected, save and except what has been mentioned hereinabove in paragraph 11 C to F.
- H. No order as to cost.

MANOJ SAUNIK
Manoj Saunik
Chairperson, MahaRERA

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